

Tentative Rulings and Resolution Review Hearings
September 21, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

******IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.******

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time. The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

IN RE: BATES

CASE NUMBER: 26CV-0210349

Tentative Ruling on Petition for Name Change: Petitioner Stephanie Bates seeks to change her own last name, as well as her three minor children's last names, to Archer. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided.

Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). No proof of service is on file for Aaron Hille, who is identified in the Petition as a parent of two of the minors. The Petition indicates the father of one of the minors is deceased.

This matter is continued to **Monday, November 9, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date and proof of service must be filed. Proof of publication must also be filed. No appearance is necessary on today's calendar.

IN RE: CAREAGA

CASE NUMBER: 26CV-0211212

Tentative Ruling on Petition for Change of Name: Petitioner Jessica Hope Careaga seeks to change her name to Alexandria Naomi Careaga. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

CAUFIELD VS. CAPTIVE-AIRE SYSTEMS, INC., ET AL.

CASE NUMBER: 24CV-0205744

Tentative Ruling on Motion for Final Approval of Class Action and PAGA Settlement: Plaintiff Grant Caufield moves for an Order granting final approval of a proposed class action settlement between Plaintiff and Defendants Captive-Aire Systems, Inc. and Captive-Aire Systems of California Inc. The Motion is properly noticed and unopposed. This Court granted preliminary approval on March 16, 2026.

Total Settlement Amount	\$1,865,000.00
Proposed Attorneys' Fees (1/3)	-\$621,666.67
Litigation Costs and Expenses (actually incurred)	-\$23,146.27
Settlement Administration Costs (actually incurred)	-\$9,500
Proposed Class Representative Enhancement	-\$5,000
PAGA Claim Settlement Allocation	\$50,000
Payment to LWDA (75%)	(-\$37,500)
Payment to Class Members (25%)	(\$12,500)
Settlement to be Disbursed to Class Members	\$1,155,687.06

The settlement class is comprised of 426 individuals. Each Participating Class Member is eligible

to receive an average benefit of \$2,712.88 subject to employee-side tax and withholdings. There are 299 PAGA Members who will each receive an average of \$41.81 from the 25% share of the PAGA Penalties. The highest gross Individual Class Payment is estimated to be \$6,524.02, and the lowest is \$0.91.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is highly experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced mediator. Lastly, the overall reaction of the class to the proposed settlement was positive. Out of the 429 Class Members, all were notices were deliverable. The settlement administrator did not receive any objections, and received three requests for exclusion. Plaintiff has complied with the terms of the Court's March 16, 2026 Order, and no objections have been raised. Final approval of the settlement is GRANTED.

Attorney Fees. Plaintiff is requesting attorney fees of one third of the settlement amount, or \$621,666.67 and argues that the requested fees are reasonable under the common fund doctrine and a lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorney fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a

contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation.” *Id.* at 503.

The trial court may cross-check a common fund attorneys’ fees award with an abbreviated lodestar calculation for the purpose of “bringing a measure of the time spent by counsel into the trial court’s reasonableness determination.” *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra*, 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the Court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

Based on the rates suggested by Class Counsel, the lodestar is \$171,480.00, which is based on 213.3 hours of attorney time at their customary rates. The requested amount of \$621,666.67 therefore represents a multiplier of roughly 3.63. Counsel argues application of the positive multiplier is reasonable and appropriate based on the contingent risk class counsel incurred, the difficulty of questions involved, the length of litigation, substantial benefit conferred on the Class and the State of California and the skill displayed by Class Counsel. The class was notified of the proposed attorney fee and no objections were raised. The Court finds the requested attorney fees reasonable and they are awarded.

Costs and Expenses. Plaintiff seeks reimbursement for costs and expenses of \$23,146.27. The Court preliminarily approved costs up to \$25,000. The incurred and anticipated costs appear to be appropriate. The Court finds that the \$23,146.27 in costs and expenses incurred by Plaintiff’s counsel are reasonable and were necessary to the prosecution of this action.

Enhancement Award. Plaintiff requests a class representative enhancement payment of \$5,000 for Plaintiff Grant Caufield. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394–95, citing *Van Vracken v. Atlantic Richfield Co.* (1995) 901 F. Supp. 294, 299. Plaintiffs spent significant time assisting counsel in this action. Plaintiff’s efforts have resulted in a monetary benefit to the class members. There has been no objection by any member of the class to the enhancement award. The Court finds that the class representative enhancement payment is reasonable.

Settlement Administration Costs. The Court authorized Phoenix Settlement Administrators as the settlement administrator. Costs incurred were the amount approved by the Court, at \$9,500.00. Jarrod Salinas, a case manager for Phoenix, provided a declaration that details the work done by Phoenix. An itemized invoice is also attached. The costs are reasonable and are approved.

The Motion is **GRANTED**. Plaintiff submitted a Proposed Order and Judgment that will be executed. The Court will retain jurisdiction pursuant to CRC 3.769(h). Absent a request for an

alternative date, the Court intends to set the matter on **Monday, March 22, 2027, at 8:30 a.m. in Department 64** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, any uncashed monies were distributed to the California Controller's Unclaimed Property Fund, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than March 15, 2027.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

Tentative Ruling on Motion to Enter Judgment: Plaintiff moves for entry of judgment pursuant to Code of Civil Procedure section 664.6. The parties settled this matter at the Mandatory Settlement Conference held May 4, 2026. The Settlement Agreement was executed June 4, 2026. Defendant has made a partial payment under the terms of the Agreement and has failed to timely make the remaining payment. The Motion has been properly noticed and is unopposed.

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.

Here, the parties stipulated to settlement orally before the court on May 4, 2026. Thereafter, the settlement was reduced to writing and signed by the parties on June 4, 2026. The signed writing is attached as Exhibit 2 to the Declaration of Steward Altemus. As of the August 21, 2026 filing of this Motion, a partial payment has been made. Plaintiff granted a 30 day extension to the payment due date, but Defendant has not timely paid the remaining balance. Plaintiff is entitled to entry of judgment on the terms of the Settlement Agreement for the outstanding balance plus interest.

The motion is **GRANTED**. The proposed order and judgment will be executed.

LUCERO VS. ADAMS

CASE NUMBER: 26CV-0211131

Tentative Ruling on Demurrer: Defendant Daniel Adams, individually and dba Daniel Adams Construction demurs to Plaintiff Dolores Lucero's Complaint pursuant to Code of Civil Procedure section 430.10(e) on the grounds that it is barred by res judicata. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Daniel Adams establishes compliance with the meet and confer requirements.

Request for Judicial Notice: Defendant's requests that the Court take judicial notice of the following is GRANTED, Pursuant to Evidence Code 452(d).

1. Ruling dated July 10, 2024 and Notice of Entry of Judgment filed July 12, 2024 in Small Claims matter of *Lucero v. Adams*, Shasta County Superior Court Case NO. 24CL-00078.
2. Notice of Entry of Judgment – Small Claims Appeal dated August 26, 2024 in *Lucero v. Adams*.
3. Order denying Motion to Vacate Judgment dated September 17, 2024.

4. Order dated October 10, 2024.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Here, Defendant demurs on the grounds that res judicata bars the action. “Claim preclusion, often referred to as res judicata, provides that a valid, final judgment on the merits precludes parties or their privies from relitigating the same ‘cause of action’ in a subsequent suit. ... With respect to claim preclusion (res judicata), three requirements must be met. First, the second lawsuit must involve the same ‘cause of action’ as the first lawsuit. Second, there must have been a final judgment on the merits in the prior litigation. Third, the parties in the second lawsuit must be the same (or in privity with) the parties to the first lawsuit.” *City of Oakland v. Oakland Police & Fire Retirement System* (2014) 224 Cal.App.4th 210, 227-228 (internal citations omitted).

Whether two lawsuits are based on the same cause of action is determined in California by reference to the primary right theory. Under this theory, a “cause of action” is comprised of a primary right possessed by the plaintiff, a corresponding duty imposed upon the defendant, and a wrong done by the defendant which is a breach of such primary right and duty. The primary right is the plaintiff’s right to be free of the particular injury, regardless of the legal theory on which liability is premised or the remedy which is sought. Thus, it is the harm suffered that is the significant factor in defining the primary right at issue. *Ibid.* Res judicata applies to judgments rendered by the small claims court. *Allstate Ins. Co. v. Mel Raption, Inc.* (2000) 77 Cal.App.4th 901.

Plaintiff’s Complaint alleges breach of oral contract, negligence, and related causes of action arising out of a residential construction project. The Complaint alleges defective work resulting in water intrusion. Plaintiff’s prior small claims action has already fully adjudicated this cause of action. The primary right here is the same. The Court’s July 10, 2024 Judgment entered in Shasta County Superior Court Case No. 24CL-00078, *Lucero v. Adams*, concerned the same construction project, between the same parties, with a final judgment entered on the merits. Plaintiff’s Opposition brief argues that the water intrusion she observed on December 28, 2024 after the small claims matter concluded, confers a new cause of action or primary right. It does not. New or continuing damages arising from the same allegedly defective work is not grounds for relitigating Plaintiff’s injury and Defendant’s duty. The harm suffered (defective construction work), although it is alleged to be continuing, or occurring after the resolution of the small claims matter, does not state facts sufficient to constitute a new cause of action.

Defendant’s demurrer is **SUSTAINED** without leave to amend on the grounds of res judicata. No proposed order was submitted as required by Local Rule 5.17(D). Defendant shall prepare the order.

PAPINI VS. PAPINI

CASE NUMBER: 24CV-0205898

Tentative Ruling on Order to Show Cause Re: Contempt: An Order to Show Cause Re: Contempt (“OSC”) issued on September 21, 2026, to Sherri Papini for failure to comply with this Court’s December 26, 2025 Order granting Plaintiff’s Motion to Compel Answers to Form Interrogatories, and Response to Request for Production of Documents, and Request for Sanctions. Proper proof of personal service of the OSC is on file. No response to the OSC has been filed.

The elements that support punishment for contempt are (1) a valid court order; (2) the alleged contemnor’s knowledge of the order; and (3) noncompliance. *In Re Marcus* (2006) 138 Cal.App.4th 1009. An individual may be held in contempt of court for “disobedience of any lawful judgment, order, or process of the court.” CCP §1209(a)(5). If, after investigation and hearing, the individual is found guilty of contempt, they may be punished with a fine not to exceed \$1000 or imprisonment not to exceed five days. CCP §1218(a). They may be ordered to pay the moving party’s attorney’s fees and costs. CCP §1218(a). If the contempt results from the individual’s failure to perform an act that is within their power to perform, they may be imprisoned until they have performed the act. CCP §1219(a).

Because the OSC hearing may result in depriving Defendant of her physical liberty, she has a due process right to court-appointed counsel if she demonstrates that she is financially unable to obtain counsel on her own. *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503; *Lassiter v. Department of Social Services* (1981) 452 U.S. 18, 25; *Salas v. Cortez* (1979) 24 Cal.3d 22; *Conservatorship of Sides* (1989) 211 Cal.App.3d 1086, 1091-1092. The parties are ordered to attend today’s hearing prepared to set a date for an evidentiary hearing on the Order to Show Cause re Contempt. Defendant must also be prepared to address the issue of her eligibility for court-appointed counsel to represent her only at the OSC hearing.

PERRY VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0209982

This matter is on calendar for hearing on Petitioner’s Motion for Stay of Enforcement. Upon review of the file, the Court notes that Petitioner attempted to file a Stipulation and Proposed Order staying enforcement on September 10, 2026. That Stipulation would moot the Motion for Stay. However, the clerk rejected the attempted filing because the Proposed Order was not lodged as a separate document as required by Local Rule 5.06. In the interest of judicial economy, the Court will continue hearing on this Motion again, to permit the parties to properly file their Stipulation and Order for the Court’s consideration.

Additionally, the Court notes that Petitioner has not filed and served their opening brief, which was due on September 7, 2026. **The parties are ordered to appear today to discuss the status of the case.**

RUPP VS. FCA US LLC, ET AL.

CASE NUMBER: 26CV-0210538

Tentative Ruling on Demurrer: Defendant FCA US, LLC demurs to the First, Second, Third, Fourth, and Sixth Causes of Action of the Complaint filed by Plaintiff Bryan Rupp on June 23, 2025. Plaintiff opposes the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Andre Gahan provides evidence of compliance with the meet and confer requirements.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the First Cause of Action, Second Cause of Action, and Third Cause of Action for violation of Civ. Code 1793, Fourth Cause of Action of breach of implied warranty, and the Sixth Cause of Action for fraudulent inducement-concealment.

First, Second, and Third Causes of Action. Defendant demurs to the First, Second, and Third Causes of Action on the grounds that they are barred by the statute of repose and statute of limitations.

Statute of Repose. CCP § 871.20 was effective as of January 1, 2025, and provides a statute of limitations for actions for restitution or replacement of certain motor vehicles, which must be commenced within one year after the expiration of the applicable express warranty and cannot be brought later than 6 years after the date of original delivery of the vehicle.

Here, the vehicle was purchased on September 15, 2018, therefore the time to file suit would have expired on September 15, 2024, prior to the filing of the complaint and the effective date of CCP § 871.20. “If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” *Rosefield Packing Co. v. Superior Court of San Francisco* (1935) 4 Cal.2d 120, 122. The Court finds that Plaintiff was not given reasonable opportunity to exercise his remedy, therefore retroactive application of CCP § 871.21 is unconstitutional. The Demurrer on the is **OVERRULED** on the grounds that the claims are barred by the statute of repose.

Statute of Limitations. Defendant also argues that the causes of action are barred by the statute of limitations set forth in Cal. Comm. Code § 2725. Cal Comm. Code § 2725 provides any action for breach of contract for sale must be commenced within four years after it has accrued.

A cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made,

except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.

Cal. Com. Code § 2725(2).

Defendant argues that Cal. Com. Code § 2725 bars Plaintiff's Song-Beverly claims because Plaintiff purchased the vehicle on September 15, 2018, and did not file the Complaint until June 23, 2025, six years and eight months later. Plaintiff contends that the cause of action did not accrue on the date of sale, but upon Plaintiff's discovery of the breach. Both the express language of Cal. Com. Code § 2725 and case law instruct that a cause of action for breach of express warranty does not necessarily accrue upon sale or delivery. "This conclusion is consistent with the policy of the Act requiring buyers to give the seller of a "lemon" automobile a reasonable opportunity to repair it. (See Civ. Code, § 1793.2, subds. (d)(1) and (e)(1).) If we adopted the position urged by respondent and held that a cause of action for breach of express warranty accrues on tender of delivery, before the seller has an opportunity to repair any defects, we would undermine the legislative purpose that the parties attempt to resolve any deficiencies in performance before resorting to the remedies provided in the Act. In light of our conclusion that actions for breach of warranty under the Act and under the California Uniform Commercial Code are governed by the same statute of limitations, the same rule of accrual must apply to both causes of action. Application of California Uniform Commercial Code section 2725, subdivision (2) provides this consistency while meeting the policies of the Act." *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal. App. 3d 205, 218–19.

Here, neither the Complaint nor the Opposition identifies a date of accrual (a date of discovery of the alleged breach) or when the last repair attempt was made. The Complaint alleges only vaguely that the fraudulent conduct regarding the defect was not discovered until "shortly before" the complaint was filed. The Complaint is therefore uncertain and ambiguous, but Defendant did not demur on those grounds. "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. (*Moseley v. Abrams* (1985) 170 Cal.App.3d 355, 359–360.) In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. (*Mangini v. Aerojet-General Corp.* (1991) 230 Cal.App.3d 1125, 1155, 281 Cal.Rptr. 827.)" *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal. App. 4th 1397, 1403. Here, the Complaint does not clearly and affirmatively show the action is barred based on the applicable statutes of limitations. Therefore, the Demurrer is **OVERRULED** on the grounds that the claims are barred by the statute of limitations.

Fourth Cause of Action. Defendant also demurs to the Fourth Cause of Action for breach of implied warranty on the grounds that the cause of action is barred by the statute of limitations. Likewise, the implied warranty of merchantability provided by Civ. Code § 1791.1(c) may be breached by a latent defect undiscoverable at the time of sale. The statute of limitations therefore does not necessarily begin to run at the time of tender of delivery but may accrue later. *Mexia v. Rinker Boat Co, Inc.* (2009) 174 Cal.App.4th 1297. Therefore, the Demurrer is **OVERRULED** on the grounds that the claim is barred by the statute of limitations.

Sixth Cause of Action. Defendant demurs to the Sixth Cause of Action alleging Fraudulent Inducement-Concealment on the grounds that the claim is barred by the statute of limitations, Plaintiff fails to allege fraud with specificity, Plaintiff did not establish a duty to disclose, and

because the claim is barred by the Economic Loss Rule.

Statute of Limitations. There is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake. Civ. Code § 338(d). Again, the Complaint merely alleges that the wrongful conduct was not discovered until “shortly before” the filing of the Complaint following Defendant’s unsuccessful attempts to repair the defects. For the same reasons as stated above, the Complaint does not clearly and affirmatively show the action is barred based on the applicable statutes of limitations. Therefore, the Demurrer is **OVERRULED** on the grounds that the claim is barred by the statute of limitations.

Specificity. Defendant asserts that Plaintiff’s Sixth Cause of Action is not pled with the requisite specificity. Fraud in the inducement occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable. *Duffens v. Valenti* (2008) 161 Cal. App. 4th 434, 449. The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.] *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Fraud allegations must be pled with more detail than other causes of action. The facts constituting the fraud, including every element of the cause of action, must be alleged factually and specifically. The objectives are to give the defendant notice of definite charges which can be intelligently met, and to permit the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. *Apollo Cap. Fund, LLC v. Roth Cap. Partners, LLC* (2007) 158 Cal. App. 4th 226, 240. In cases involving fraud, allegations as to matters which are peculiarly within the knowledge of the defendant, and as to which the plaintiff can learn only from statements made to them by others, may be made on information and belief. Less certainty is required in pleading such facts than in pleading facts presumptively or actually within the knowledge of the plaintiff. *Lewis v. Beeks* (1948) 88 Cal. App. 2d 511, 521.

Here, Plaintiff alleges that the 2018 Chrysler Pacifica he purchased has several defects many of which cause safety issues when the subject vehicle is being driven. Plaintiff further alleges that Defendant was aware of the defects but failed to disclose to Plaintiff at the time of the sale. Defendant had knowledge of the defects through sources not available to consumers. Plaintiff would not have purchased the vehicle had he known about the safety issues. Plaintiff unknowingly exposed himself to the risk of accident, injury, and/or liability to others. Plaintiff alleged that Defendant knowingly and intentionally concealed the material facts. The Court finds that Plaintiff has pled each element of fraudulent inducement-concealment with the required specificity and the Demurrer is **OVERRULED**.

Duty to disclose. Defendant also argues that the Sixth Cause of Action fails because a transactional relationship giving rise to a duty to disclose has not been alleged. Concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes

partial representations but also suppresses some material facts. *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311. “Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a “transaction” between the plaintiff and the defendant.” *Id.* If a fiduciary relationship does not exist between the parties of a transaction, a fraudulent concealment claim may be brought (1) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (2) when the defendant actively conceals a material fact from the plaintiff; and (3) when the defendant makes partial representations but also suppresses some material facts. *Id.* “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” *Id.* “Under California law, manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer are independent of the sale contract.” *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, 837.

In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Plaintiff fails to allege where the vehicle was purchased from, that the vehicle was purchased from an authorized dealership, and that Defendant’s authorized dealerships are agents for purposes of the sale. Under *Dhital*, Plaintiff fails to allege sufficient facts to establish a duty to disclose.

Plaintiff argues that by entering a warranty contract, the parties established a preexisting relationship giving rise to a duty to disclose. The existence of an express warranty that is provided as part of the sale of a new vehicle does not establish a direct transactional relationship. The opposition fails to provide sufficient facts to show that a duty to disclose can be adequately pled, therefore the Demurrer is **SUSTAINED** without leave to amend.

Economic loss rule. Finally, Defendant alleges that the Sixth Cause of Action is barred by the Economic Loss Rule. The Economic Loss Rule does not bar fraudulent concealment claims. *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828. The Demurrer is **OVERRULED** on the grounds that it is barred by the Economic Loss Rule.

In summary, the Demurrer is **OVERRULED** as to the First, Second, Third, and Fourth Causes of Action. The Demurrer is **SUSTAINED** without leave to amend as to the Sixth Cause of Action on the grounds that Plaintiff has failed to establish a duty to disclose. Defendant has provided a proposed order that will be modified to reflect the Court’s ruling.

IN RE: SAWICKI

CASE NUMBER: 26CV-0211224

Tentative Ruling on Petition for Change of Name: Petitioner Barbara A. Sawicki seeks to change her name to Barbara A. Bachrach. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

SEKHON VS. HUTT

CASE NUMBER: 26CV-0211420

Tentative Ruling on Special Motion to Strike: Defendant Christopher Hutt moves to strike the Complaint pursuant to CCP § 425.16, on the grounds that Plaintiff's claims arise from protected activity, and that Plaintiff cannot establish a probability of prevailing. Plaintiff opposes the Motion. This matter was originally set for hearing on September 8, 2026. It was not properly noticed and the Court's tentative ruling was to deny the Motion without prejudice for failure to timely serve. However, both parties appeared on September 8, 2026, and stipulated to continue hearing on the Motion to today's date. Defendant now objects to the Court considering the Plaintiff's late-filed Opposition. The Court agrees that the Opposition was not timely filed or served. However, given the continuance of the hearing, Defendant had sufficient time to review and provide a substantive Reply, which he has done. Therefore, the Court exercises its discretion to consider the late-filed Opposition.

Anti-SLAPP Standards: A Strategic Lawsuit Against Public Participation (SLAPP) suit seeks to chill or punish a party for exercising their constitution rights to petition for redress of grievances or exercise of constitutional rights of free speech. *Neville v. Chudacoff* (2008) 160 Cal. App. 4th 1255, 1261. CCP § 425.16 provides a procedural remedy to dispose of SLAPP suits. *Rusheen v. Cohen* (2006) 37 Cal. 4th 1048, 1055-56. A litigant may seek to strike a cause of action arising from any act in further of the right to petition. CCP § 425.16(e)(2). CCP § 425.16 (b)(1), provides that "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the [C]ourt determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." A special motion to strike is thus a procedural remedy to dispose of lawsuits brought to chill the valid exercise of the constitutional rights of petition or free speech. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055-1056. "The only means specified in section 425.16 by which a moving defendant can satisfy the ["arising from"] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in [section 425.16,] subdivision (e)." *Park v. Board of Trustees of California State University* (2017) 2 Cal. 5th 1057, 1061.

Section 425.16 provides a two-step process for determining whether an action is a SLAPP. *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88. First, the Court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. *Ibid.* In deciding the initial issue of "arising from," the court considers "the pleadings, and supporting and opposing affidavits...." *Id.* at 89. If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim. *Id.* at 88. Plaintiff must demonstrate by admissible and competent evidence, a reasonable probability of prevailing on the merits. *Padres v. Henderson* (2003) 114 Cal.App.4th 495, 509. It is only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – that is a SLAPP, subject to being stricken under the statute. *Navellier, supra* 29 Cal.4th at 89.

First Prong of Anti-SLAPP Analysis: Defendant's Motion generally challenges the entire Complaint. The Complaint alleges four causes of action: 1) Defamation – Libel and Slander; 2) False Light Invasion of Privacy; 3) Intentional Infliction of Emotional Distress; and 4) Permanent Injunctive Relief. The Motion's only argument regarding any potentially protected activity is that

the Complaint was filed in retaliation for Defendant making a labor complaint concerning Plaintiff. The Court has reviewed the pleadings and supporting and opposing affidavits and finds that Defendant has made a threshold showing that Plaintiff's claims alleging that Defendant made false reports with governmental agencies arises from protected activity. Specifically, allegation (d) under the Third Cause of Action "Filing false complaints with governmental agencies, including the City of Redding Fire Department, Cal/OSHA, and the Employment Development Department." This conduct falls under CCP § 425.16(e)(1) and (2). Therefore, prong one of the Anti-SLAPP analysis is satisfied as to portions of the Complaint, so the Court must proceed to step two.

Second Prong of Anti-SLAPP Analysis: A plaintiff must demonstrate by admissible and competent evidence, a reasonable probability of prevailing on the merits. *Padres v. Henderson* (2003) 114 Cal.App.4th 495, 509. The court determines whether the plaintiff has sufficient evidence to show that she or she can satisfy each element of the cause of action. *Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325. A plaintiff's unverified complaint cannot be used to make the required showing on the second step of the anti-SLAPP analysis. *MMM Holdings, Inc. v. Reich* (2018) 21 Cal.App.5th 167, 186.

Plaintiff's only argument regarding his probability of prevailing on the merits of the allegations regarding Defendant's complaints to governmental agencies, appears to be that Defendant's own written communications corroborate Plaintiff's allegations. Plaintiff attaches as Exhibit A to his Declaration what appears to be an undated string of text messages, allegedly between Plaintiff and Defendant's wife. This is not admissible and competent evidence. Even if it were, it would not be sufficient to show that Plaintiff can satisfy each element of any of the causes of action alleged. Plaintiff has failed to demonstrate a reasonable probability of prevailing on the merits.

The Court does not strike the entire Complaint on these grounds. Instead, only the allegations of protected activity supporting the stricken claim are eliminated from the Complaint. *See Baral v. Schnitt* (2016) 1 Cal.5th 376, 396. Therefore, only the portions of the Complaint relating to Plaintiff's allegations of filing false complaints with governmental agencies will be stricken. Specifically, the following:

1. Complaint, page 4, paragraphs number 29-35.
2. Complaint, page 7, lines 1-2, 21-22 ("filing knowingly false complaints with governmental agencies").

Sanctions: Defendant requests the Court impose sanctions against Plaintiff pursuant to CCP § 425.16(c)(1) which provides that a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. Here, Defendant is proceeding in pro per under a fee waiver and has provided no evidence of fees or costs incurred in this matter. Defendant is not entitled to recover attorney fees. *Taheri Law Group v. Evans* (2008) 160 Cal.App.4th 482, 494 (a party not represented by counsel who litigates an anti-SLAPP motion on his own behalf may not recover attorney fees under the statute).

The Motion is **GRANTED** in part, as detailed above. No sanctions are imposed. The portions of the Complaint that allege Defendant made false complaints to governmental agencies are **STRICKEN**. Defendant is ordered to file a proposed order consistent with this ruling.

Tentative Ruling on Motion to be Excused from Personal Appearance: Defendant Christopher Hutt moves for an order permitting him to participate in this action exclusively through written

filings and excuse Defendant from personally appearing at hearings, unless the Court specifically orders Defendant's personal appearance. As a threshold issue, there is no proof of service on file for this Motion. Therefore, it is **DENIED** without prejudice.

Local Rule 5.17(c) provides in relevant part that "Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. The rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. 15 Local Rules of the Superior Court of California, County of Shasta A party is not required to give notice to the Court or other parties of intent to appear to present argument. The tentative ruling, or other such ruling as the Court may render, will not become the final ruling of the court until the hearing."

Additionally, remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court (i.e. an Order is not required). The instructions for appearing remotely through WebEx can be found on the first page of the tentative rulings, which are posted every Friday on the Court's website.

9:00 a.m. Review Hearings

DUGO VS. MAIU PARTNERS LLC

CASE NUMBER: 25CV-0208868

This matter is on calendar today for trial setting. In its August 3, 2026 Order, the Court set today's date and ordered Plaintiff to give notice. No proof of service of notice of hearing has been filed. The Court designates the matter a plan II case and intends to set trial no later than April 6, 2027. Both sides have posted jury fees. If Defendant fails to appear today due to lack of notice, the Court will set a new trial setting date and again direct Plaintiff to give notice and to file proof of service.

DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.

CASE NUMBER: 25CV-0208902

This matter is on calendar for review regarding status of settled statement. The Court issued its Settled Statement on August 28, 2026. This matter is set for review regarding status of appeal on **Monday, March 22, 2027 at 8:30 a.m. in Department 64**. The parties are ordered to file a status statement at least five court days prior to the review hearing. No appearances are necessary on today's calendar.

HARDING VS. ALFONSO, ET AL.

CASE NUMBER: 25CV-0207715

This matter is on calendar for review regarding status of pending issues. Appearances are necessary on today's calendar.

HEARN VS. KONDYBE, ET AL.

CASE NUMBER: 25CV-0208638

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than March 2, 2027. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

This matter is on calendar for review regarding status of settlement funding and dismissal. Plaintiff has noticed a Motion to Enter Judgment for hearing today on the 8:30 a.m. calendar. The Court will advance the 9:00 a.m. review hearing to be discussed concurrently. No appearances are necessary on the 9:00 a.m. calendar.

MCCOY, ET AL. VS. MILLER, ET AL.

CASE NUMBER: 25CV-0207500

This matter is on calendar for trial setting. The August 25, 2026 trial date was vacated due to unavailability of the Court. The parties are ordered to appear to provide available dates for the estimated one day bench trial.

MORAVEC, ET AL. VS. MORAVEC

CASE NUMBER: 24CV-0204485

This matter is on calendar for review regarding status of judgment/dismissal. A Notice of Settlement was filed on June 16, 2026 which indicates that the case would be dismissed within 45 days. No dismissal is on file. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

NUNEZ VS. JURIN, ET AL.

CASE NUMBER: 23CV-0203580

This matter is on calendar for review regarding status of judgment/dismissal. Defendant Wendy Jurin has been dismissed from this matter. The remaining Defendants: Ronald Jurin and Trinity River Construction, were defaulted in April of 2024. No request for default judgment has been filed despite the passage of over two years. No status statement has been filed. The Court will issue an Order to Show Cause re Sanctions for failure to timely seek default judgment pursuant to California Rule of Court 3.110(h). An appearance is necessary on today's calendar.

RAMIREZ CUATETL VS. VAN DRESSAR

CASE NUMBER: 25CV-0208118

This matter is on calendar for trial setting. The Court designates this matter as a plan III case and intends to set the matter for trial no later than June 29, 2027. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$371,690.00 UNITED STATES CURRENCY

CASE NUMBER: 26CV-0211306

This asset forfeiture matter is on calendar for status. The People filed a Petition for Forfeiture in Rem on July 21, 2026. No Claim Opposing Forfeiture has been filed. An appearance is necessary on today's calendar to provide a status of any related criminal matter.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$370,340 US CURRENCY

CASE NUMBER: 26CV-0211414

This asset forfeiture matter is on calendar for status. A Claim Opposing Forfeiture was filed by Claimants Embarcadero Trading Co. and Moshe Pentelnik on August 6, 2026. The attached Proof of Service indicates that the Shasta County District Attorney was served by mail on August 6,

2026. A Petition for Forfeiture has not been filed by the Shasta County District Attorney. An appearance is necessary on today's calendar.

WESTLUND, ET AL. VS. PINEDA, ET AL.

CASE NUMBER: 25CV-0207961

This matter is on calendar for a trial setting conference. The parties filed a stipulation over four months ago, on May 12, 2026, that a tentative settlement had been reached and requesting to vacate the trial date. No Notice of Settlement or Dismissal has been filed. The Court designates this matter as a Plan III case and intends on setting the matter for trial no later than June 15, 2027. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear with available trial dates.